



Notification Waiver Determination

KfW – KNDS N.V.

Acquisition	Germany's state-owned promotional bank, Kreditanstalt für Wiederaufbau (KfW), acting pursuant to a Special Federal Mandate on behalf of the Federal Government of Germany, applied for a notification waiver in respect of its proposed acquisition of a minority shareholding of up to 40% of the issued share capital of KNDS N.V. (KNDS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 June 2026

Parties to the Acquisition	The acquirer, KfW, is a public law institution (<i>Anstalt des öffentlichen Rechts</i>) based in Frankfurt, governed by the <i>Law Concerning Kreditanstalt für Wiederaufbau</i>. The Federal Republic of Germany holds 80% of the share capital of KfW, with the Federal States of Germany together holding the remaining 20%. KfW's mandate is to finance and promote sustainable development. The target, KNDS, is a Franco-German business association in the land defence sector. KNDS, together with its subsidiaries, is active in the development, manufacture and support of a product portfolio ranging from highly protected wheeled vehicles through to anti-aircraft and artillery systems to main battle tanks, infantry fighting vehicles and bridge laying systems. The parties (or their connected entities) both supply military and defence products in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is limited horizontal overlap between the product offerings of the parties (or their connected entities) in Australia, as their respective offerings primarily serve different use cases b. KNDS has a small presence in Australia

	c. there is low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products and services, post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act